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Judgment Sheet
**IN THE LAHORE HIGH COURT,
LAHORE
JUDICIAL DEPARTMENT**

Criminal Revision No.1439 of 2025
(Fayyaz Ahmad, etc.. Vs. The State., etc.)
&
Criminal Misc. No.12887-M of 2025
(Hassan Ali. Vs. The State., etc.)

JUDGMENT

Date of hearing: 27.06.2025

Petitioners by: Ch. Imran Raza Chadhar, Advocate

State by: M. Sumaira Shafi, DDPP

Respondent No.2 by: Barrister Danyal Ijaz Chadhar, Advocate.

Abher Gul Khan, J. Fayyaz Ahmad, Imtiaz Ahmad, Arshad Ali, Sohail Abbas, Haq Nawaz, Irshad Ullah, Mazhar Iqbal, Khalil Ullah, Shahid Nawaz, and Nazir Ahmad (petitioners) involved in case FIR No.451 dated 24.10.2018 registered under Sections 324, 337F(i), 337F(iii), 337F(v), 337F(vi), 337A(i), 337A(ii), 427, 447, 511, 334, 336, 337F(ii), 337L(2), 148 & 149 at Police Station Saddar Pindi Bhattian were tried by learned Magistrate Section, 30 Pindi Bhattian who proceeded to convict and sentence them in following terms

Petitioner Fayyaz Ahmad

Under section 324 PPC: to undergo rigorous imprisonment of five years along with fine of Rs.50,000/- and in case of failure to further undergo simple imprisonment for 03 months

Under section 336 PPC: to undergo rigorous imprisonment of five years and to pay Arsh equivalent to Diyat in light of Section 337-R amounting to Rs.8,103,955/- to the injured Tasawar Ali

Under section 337F(i) PPC: to pay Daman Rs. 90,000/- to the injured Tasawar Ali.

Petitioner Imtiaz Ahmad

Under section 324 PPC: to undergo rigorous imprisonment of five years along with fine of Rs.50,000/- and in case of failure to further undergo simple imprisonment for three months.

Under section 337F(vi) PPC: to undergo rigorous imprisonment of two years and to pay Daman amounting to Rs.100,000/- to the heirs of Asghar Ali.

Petitioner Arshad Ali

Under section 324 PPC: to undergo rigorous imprisonment of five years along with fine of Rs.50,000/- and in case of failure to further undergo simple imprisonment for three months.

Under section 337A(i) PPC: to undergo rigorous imprisonment of six months and to pay Daman amounting to Rs.50,000/- to Aqib Ali.

Under section 337F(i) PPC: to undergo rigorous imprisonment for six months and to pay Daman amounting to Rs.30,000/- to the injured Aqib Ali.

Petitioner Irshad Ullah

Under section 337A(ii) PPC was sentenced to pay Arsh 5% of the Diyat amounting to Rs.405198/- to the injured Sahib Khan.

Petitioner Sohail Khan

Under section 337F(ii) PPC was sentenced to pay Daman amounting to Rs.50,000/- to the injured Muhammad Shahbaz

Petitioner Haq Nawaz

Under section 324 PPC: to undergo rigorous imprisonment of five years along with fine of Rs.50,000/- and in case of default to further undergo simple imprisonment for three months.

Under section 337A(i) PPC: to undergo rigorous imprisonment of six months and to pay Daman amounting to Rs.100,000/- to the injured Hassan Ali.

Under section 337F(i) PPC: to undergo rigorous imprisonment of six months and to pay Daman amounting to Rs.30,000/- to the injured Hassan Ali.

Under section 337F(iii) PPC: to undergo rigorous imprisonment of one year and to pay Daman amounting to Rs.60,000/- to the injured Hassan Ali.

Petitioner Mazhar Iqbal

Under section 324 PPC: to undergo rigorous imprisonment of five years along with fine of Rs.50,000/- and in case of default to further undergo simple imprisonment for three months.

Under section 337A(i) PPC: to undergo rigorous imprisonment of six months and to pay Daman amounting to Rs.50,000/- to the injured Mohsin Ali.

Under section 337F(i) PPC: to undergo rigorous imprisonment of six months and to pay Daman amounting to Rs.30,000/- to the injured Mohsin Ali.

Petitioner Khalil Ullah

Under section 337F(v) PPC was sentenced to pay Daman amounting to Rs.80,000/- to the injured Mohsin Ali

Under section 337F(i) PPC: was sentenced to pay Daman amounting to Rs.30,000/- to the injured Mohsin Ali.

Petitioner Shahid Nawaz

Under section 337A(ii) PPC was sentenced to pay Arsh 5% of the Diyat amounting to Rs.405198 to Zaigham Ali

Under section 337L(2) PPC was sentenced to pay Daman amounting to Rs.150,000/- to the injured Zaigham Ali

Petitioner Naziar Ahmad

Under section 337F(vi) was sentenced to pay Daman amounting to Rs.100,000/- to the injured Zulfiqar Ali

Under section 337A(i) PPC was sentenced to pay Daman amounting to Rs.50,000/- to the injured Zulfiqar Ali

Under section 337L(2) PPC was sentenced to pay Daman amounting to Rs.50,000/- to the injured Zulfiqar Ali.

Benefit of section 382-B Cr.P.C was also extended to the petitioners.

Challenging their conviction and sentence, the petitioners filed criminal appeal before the learned ASJ Pindi Bhattian while respondent No.2 filed criminal revision for enhancement of sentence. The appeal as well as criminal revision were dismissed, hence these petitions..

2. Arguments heard and record perused.

3. Precisely stated the case of prosecution, as disclosed by complainant Hassan Ali (PW-1) in application (Exh.PA) is to the effect that on 24.10.2018 at about 05.00 a.m., he got knowledge about the arrival of accused who while armed with weapons tried to occupy his land and also destroyed standing crops by ploughing tractor. The complainant along with Muhammad Asghar, Tasawar Ali, Mohsin Ali, Aqib, Sahib Khan, Shahbaz, Zaigham Abbas, Zulfiqar Ali reached at the spot and tried to stop the accused upon which they opened indiscriminate firing and accordingly, complainant party received different injuries. Upon hearing the commotions, witnesses attracted to the spot who save them from the clutches of the accused.

4. During trial the prosecution, in order to prove its case against the appellant produced sixteen prosecution witnesses including **Hassan Ali (PW-1)**, complainant of the case, **Tasawar Ali, Zulfiqar Ali, Aqib Riaz, Mohsin Ali, Zaigham Abbas, Muhammad Shahbaz Khan and Sahib Khan as (PW2 to PW8)**, injured of the occurrence, **Dr. Athar Majeed (Secondary witness) of Dr. Muhammad Asif as (CW-3)** who conducted medical examination of the injured and **Jahangir Ali, S.I. (PW-13)**, who investigated the case. The remaining witnesses more or less are formal in nature.

5. After the conclusion of prosecution evidence, the learned trial court also examined the petitioners under section 342, Cr.P.C. during which questions were asked arising out of the prosecution evidence but they denied almost all such questions while pleading their innocence and false involvement in the case. Petitioners neither opt to appear as of their own witness under section 340 (2) of Cr.P.C, nor produced evidence in defence. On the conclusion of trial, the petitioners were convicted and sentenced as afore-stated, hence, the instant criminal revision petition.

6. Firstly, it is important to note here that regarding the occurrence which took place on 24.10.2018 at about 05.00 a.m., F.I.R.

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was got registered on 24.10.2018 at 07.10 p.m. It is noted that in view of the serious nature of accusations of firing the matter should have been reported to the police immediately by the complainant but no such effort was made in this regard. It is also not proved from record that investigating officer received any information about the occurrence from wireless or any source. I feel no hesitation in holding that the information regarding the incident was imparted to the police by the complainant after a considerable delay and that too after due consultation and deliberation. Thus, a cautious approach ought to be adopted by the Courts for evaluating the evidence. Reliance is placed upon the case reported as Muhammad Jahangir and another v. The State and others (2024 SCMR 1741), wherein the Supreme Court of Pakistan held as under: -

“.....perusal of record reveals that FIR was lodged after an unexplainable delay of 3 hours despite the fact that the distance of the police station from the place of occurrence was 5 km. The time of occurrence is around 05:00/05:30 pm and the matter is reported at 08:30 p.m. The complainant had a bike that he used to go to the police station. This delay has not been encountered through plausible explanation by the prosecution.”

Another blatant lacuna in this case noticed is to the effect that neither in the F.I.R. nor the witnesses while recording their statements under section 161 Cr.P.C. attributed specific role to any of the accused rather they were burdened with the general allegations of firing and giving torture to the injured PWs without specifying the role of each accused performed during the occurrence. Statements of complainant, eye-witnesses and the injured witness are suffering from dishonest improvements and material contradictions rendering their testimony doubtful. Even during the course of evidence, no such material was brought on record by the prosecution in order to pinpoint the role performed by each of the accused, at the spot, however, the witnesses made dishonest improvements in their statements and assigned specific role to convicted accused / petitioners as per their choice. The Supreme Court of Pakistan consistently takes the stance that dishonest improvements are not accepted from the individual making such

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statements, leading to the exclusion of new facts presented during the trial from consideration. Reference in this context is made to the case reported as Muhammad Nasir Butt and 2 others v. The State and others (2025 SCMR 662) wherein the Supreme Court of Pakistan held as under:-

“In their statements recorded at the trial, the complainant Zahid Amjad (PW-3), Muhammad Hamid Amjad (PW-4) and injured Muhammad Majid Amjad (PW-10) have made dishonest improvements for assigning specific role to each accused, which creates serious doubt about the veracity of their testimony and it is not safe to place reliance on their statements.”

7. It is also observed from record that out of the 23 accused who faced trial, 13 have been acquitted by the trial court and five accused were only burdened with the payment of Diyat whereas five accused were convicted for penal provision. In this regard, the pivotal questions arises that whether it would be safe to rely conviction of present petitioners on the basis of same set of witnesses who were disbelieved to the extent of acquitted co-accused. The answer to this query is found divulges in the case reported as MUHAMMAD NAWAZ and another vs. The STATE and others (2024 SCMR 1731), wherein Hon’ble Supreme Court held as under :-

It was a fact that except the petitioner, rest of the accused were acquitted of the charge by the High Court and one of them by the Trial Court on the same set of evidence. Complainant has ascribed injuries jointly to all the accused and did not single out the petitioner. Under such circumstances, it would not be safe to hold him alone responsible for causing death of the deceased

8. The record further shows that though weapons of offence were shown to be recovered from the possession of the petitioners, however, it is important to note here that no crime empty was collected from the place of occurrence by the investigating officer. Neither the weapons were sent to the Forensic Science Laboratory nor any report in this regard was received to the effect that they were found in mechanical operating condition. This lacuna has created a

doubt of serious nature qua the authenticity of the prosecution case against the petitioners. In this respect, guidance is taken from case reported as "Sardar Bibi and others v. Munir Ahmad and others" (2017 SCMR 344) wherein the apex Court held that when in the FIR no specific weapon was shown in the hands of the accused; no crime empty was recovered from the place of occurrence; and no positive report of Forensic Science Laboratory was available regarding matching of any crime empty with the allegedly recovered weapon, then the recovery of weapon from accused held inconsequential and could not be considered corroborative piece of evidence. Almost same is the doubtful position of the recovery of crime weapon in the present case, therefore, the said recovery is of no help to the prosecution.

9. It is also evident from record that there are open hostilities between the parties on account of land dispute, out of which cross version also stands registered against the complainant's party, hence this factor may propel one side to commit a crime and the same factor may possibly induce the other group to implicate their rivals.

10. The epitome of above discussion is to the effect that due to delay in the registration of FIR, material contradictions in the statements of witnesses who were disbelieved to the extent of acquitted co-accused, reasonable doubt emerges about the correctness of the prosecution case. Needless to mention here that benefit of every single doubt creating circumstance is sufficient to form the basis of an acquittal. Reliance in this regard may be placed upon the cases reported as Tariq Parvez v. The State (1995 SCMR 1345), Muhammad Akram v. the State (2009 SCMR 230) and Muhammad Imran v. The State (2020 SCMR 857). In the latter cited judgment, the following observation was given by the Supreme Court of Pakistan:-

“It is by now well settled that benefit of a single circumstance, deducible from the record, intriguing upon the integrity of prosecution case, is to be extended to the accused without reservation....”

11. Foregoing in view, revision petition is hereby accepted and petitioners are acquitted of the charges. Petitioners namely Sohail Abbas, Irshad Ullah, Khalil Ullah, Shahid Nawaz and Nazir Ahmad are on bail. Their sureties stand discharged whereas petitioners namely Fayyaz Ahmad, Imtiaz Ahmad, Arshad Ali, Haq Nawaz and Mazhar Iqbal are in judicial custody and they be released forthwith, if, not required in some other case.

12. For the foregoing reasons, the Crl. Misc. No.12887-M of 2025 is found to have no force, hence is **dismissed**.

(Abher Gul Khan)
Judge

Approved for reporting

JUDGE

Abdul Rehman